

MASTER PROGRAM AGREEMENT

The purpose of this Master Program Agreement is to establish terms by which a brand (referred to herein as “Advertiser”), partners with a media partner, social media influencer, and/or affiliate marketer (each referred to herein as a “Partner”). An Advertiser may be working directly with the Partner or in some cases the “Partner” may be an impact.com entity. See Exhibit A for a list of impact.com entities to which this Master Program Agreement will apply when impact.com contracts with the Advertiser as the “Partner”.

This Master Program Agreement supersedes and replaces the “Master Campaign Agreement” with effect from the earlier of the Advertiser or Partner’s click-through acceptance of this Master Program Agreement or April 1, 2025. impact.com may update this Agreement from time to time by posting a new version.

1. Introduction

- 1.1 This Master Program Agreement and any applicable “Partner Contracts” (as defined below), collectively the “Agreement”, govern the promotion of the Advertiser by each Partner using the impact.com technology (the “Platform”). Promotion of an Advertiser by the Partner is called the “Services”. Advertiser may enter into direct relationships with Partners to perform the Services. Alternatively, the Advertiser may engage impact.com as the “Partner” in a “Network Model” where impact.com procures the Services of other Partners (referred to as “Sub-Partners”). Advertiser and Sub-Partner agree that impact.com may contract with Advertiser on the Sub-Partner’s behalf and resell the Sub-Partner’s Services. The Advertiser and the Partner are referred to collectively as the “Parties” and individually as a “Party”.
- 1.2 “Partner Contracts” are the specific terms of engagement concerning the Partner’s Services. Partner Contracts contain terms and conditions that are supplemental to, modify or replace this Master Program Agreement and are created using the “Insertion Order” function on the Platform. The Partner Contracts shall specify the events/transactions (“Actions”) that constitute the Services and qualifying parameters to be eligible to earn “Partner Compensation” (and how much) payable by the Advertiser for the Services.

2. General

- 2.1 Partner Contracts: Any Party may propose terms for a Partner Contract using the Insertion Order functionality of the Platform. Proposed Insertion Orders may be declined, countered or accepted. If Advertiser and Partner utilize other methods of or documents for contracting, then Advertiser and Partner are responsible for implementing the appropriate settings on the Platform to conform with such agreed upon terms.
- 2.2 No Guarantee: Except as and if provided for in an applicable Partner Contract, there are no guarantees that the Partner’s Services will generate any Actions and/or qualify for Partner Compensation.
- 2.3 Tracking Actions and Calculating Partner Compensation: All tracking and calculation of Partner Compensation shall be provided by impact.com. If tracking is disabled as a result of Advertiser’s error and the Advertiser continues to receive traffic from the Partner, then Partner Compensation will be calculated on a fair and reasonable basis taking into account appropriate factors.
- 2.4 Chargebacks: Actions can be cancelled or returned (a “Chargeback”) if: (a) an Action is incomplete; (b) due to a customer cancellation or return of product or services; (c) due to fraud or non-bona fide actions; (d) customer ineligibility; or (e) other reason stated in the Partner Contract.

3. Term and Termination

- 3.1 Partner Contracts: Each individual Partner Contract shall continue until the earlier of: (a) its expiration; (b) the Partner Contract is terminated pursuant to the terms of the Agreement, or (c) either the Advertiser or the Partner ceases to be eligible to use the Platform.
- 3.2 Consequences of Termination: On the expiration or termination of a Partner Contract:
 - (a) Advertiser is to be refunded pre-paid amounts for unfulfilled Services (if any);
 - (b) Advertiser shall pay all amounts then-due for Partner Compensation and for pending Actions that are completed after expiration or termination; and
 - (c) the Partner shall cease providing the Services.

4. Intellectual Property and Confidential Information

- 4.1 **License.** The Advertiser grants to the Partner for the duration of each Partner Contract a revocable, non-exclusive, non-transferable, world-wide, royalty-free license to use the ad creative solely to the extent necessary to perform the Services. Any additional requirements regarding Partner's use of Advertiser's ad creative are to be contained in an Insertion Order as "Special Terms".
- 4.2 **Promotional Methods.** Unless authorized by the Advertiser in writing, Partner shall not provide Services using the following means:
- (a) provision of leads obtained other than through intended consumer ("End User") action (e.g. through scraping or gathering compilations of End User information and/or submitting End User data for the End User instead of the End User doing so personally);
 - (b) use of fake redirects, automated software, or other mechanisms to generate Actions;
 - (c) Actions that are not in good faith, such as those using any automated device, robot, Iframes, hidden frames or interfere with referrals of End Users by another Partner; or
 - (d) the use of incentives to procure Actions from End Users.
- 4.3 **Intellectual Property:** "Intellectual Property" means trademarks (whether registered or unregistered together with all goodwill in connection thereto), unregistered and registered designs, copyright, database rights, rights in computer software, domain names, rights in Confidential Information and all other intellectual property rights (whether now subsisting or in the future created). All Intellectual Property existing prior to the commencement date of each Partner Contract shall belong to the Party that owned such rights immediately prior to such date.
- 4.4 **Confidential Information.** "Confidential Information" means all confidential information and data, whether in tangible or intangible form and includes but is not limited to trade secrets, financial, and technical information, customers, prices, discounts, and margins. A Party receiving Confidential Information ("Receiving Party") from the other Party ("Disclosing Party") agrees to (a) hold all Confidential Information in confidence and protect it with the same degree of care with which the Receiving Party protects its own Confidential Information; (b) use such Confidential Information only for the purposes of this Agreement and as permitted by this Agreement; (c) not copy or otherwise duplicate such Confidential Information, except for the purpose of this Agreement; and (d) restrict disclosure of such Confidential Information solely to those employees and agents with a need to know such Confidential Information for the purposes of this Agreement and who are bound through written obligation or law to protect the same. The foregoing obligations shall not apply to any information designated as confidential if, prior to any release of such information, it: was already known to the Receiving Party, free of any obligation to keep it confidential; is or becomes publicly known through no wrongful act of the Receiving Party; is independently developed by the Receiving Party without reference to the Confidential Information of the Disclosing Party; was received from a third party without any restriction on confidentiality; was disclosed to third parties by the Disclosing Party without any obligation of confidentiality; or is approved for release by prior written authorization of the Disclosing Party. If the Receiving Party receives a request pursuant to a court order, governmental body request or other legal process to disclose the Disclosing Party's Confidential Information, the Receiving Party shall promptly notify the Disclosing Party and reasonably assist the Disclosing Partner in obtaining a protective order requiring that any portion of the Confidential Information required to be disclosed be used only for the purpose for which a court issues an order or as otherwise required by law. impact.com, as a Disclosing Party, may disclose Confidential Information (such as contact information) of an Advertiser to Partner, if authorized by the Advertiser. Partner will keep such Confidential Information confidential in accordance with the terms of this provision. With respect to Partner Confidential Information, impact.com may, as a Receiving Party, disclose Partner Confidential Information (such as contact information) for each Advertiser that Partner is providing the Services.

5. Representations, Disclaimers and Indemnification

- 5.1 **Representations and Warranties:** Each Advertiser and Partner warrants, represents and undertakes that:
- (a) it has the full power and authority to carry out its obligations in the Agreement;
 - (b) its entry into and performance of its obligations under the Agreement shall not infringe the rights of any third party or cause it to be in breach of any obligations to a third party;
 - (c) it shall comply fully with any and all applicable laws, rules and regulations in its performance under the Agreement.
- 5.2 **Indemnification:** Each Advertiser and Partner (an "Indemnitor") shall defend, indemnify and hold impact.com and the Advertiser or Partner (as applicable) and each of their respective shareholders, directors, officers, employees, subcontractors and agents (each an "Indemnitee") harmless against all

claims, suits, costs, damages liabilities, expenses (including reasonable attorney's fees), settlements and judgments incurred, claimed or sustained by third parties ("Claims") for the Indemnitor's breach of this Agreement, provided that: (a) Indemnitee notifies Indemnitor in writing within a commercially reasonable time after its receipt of notice of any Claim; (b) Indemnitor has sole control of the defense and all related settlement negotiations (except that the Indemnitor shall not settle any Claim in any manner which would admit fault by the Indemnitee without Indemnitee's reasonable consent); and (c) Indemnitee provides Indemnitor with reasonable assistance, information and authority necessary to perform its obligations under this Section. Indemnitee may participate in the defense of a Claim at Indemnitee's expense, and such participation shall not waive or reduce any obligations on the Indemnitor under this Section.

5.3 Limitations of Liability: Nothing in this Section 5.3 shall operate to exclude or limit liability for which liability cannot be excluded or limited under law (together the "Excluded Losses").

(a) The liability of an Indemnitor to an Indemnitee whether in contract, tort (including negligence or breach of statutory duty, misrepresentation or otherwise) or for any other common law or statutory cause of action or otherwise arising by reason of or in connection with this Agreement and each Partner Contract shall be limited to the compensation paid and payable by Advertiser to Partner pursuant to Partner Contracts.

(b) Indemnitors shall not be liable to the Indemnitees in contract, tort (including negligence) or otherwise: for any loss of actual or potential profits, contracts or customers; loss of reputation; and/or any other indirect, consequential, special, punitive, exemplary damages whether arising from negligence, breach of contract or otherwise.

6. General

6.1 Waiver of Remedies: No forbearance or delay by a Party in exercising or enforcing the provisions of this Agreement shall prejudice or restrict its rights nor shall any waiver of its rights operate as a waiver of any subsequent breach. No right, power or remedy herein conferred upon or reserved or available by law is exclusive of any other right, power or remedy available hereunder and each such right, power or remedy shall be cumulative.

6.2 Assignment: This Agreement may be assigned in all or part, transferred or sub-contracted, upon prior written notification to the other Party, although such notified Party may terminate this Agreement upon written notice because of such assignment, transfer or sub-contract.

6.3 Audit rights: Each Party agrees to maintain adequate books and records relating to its compliance with the terms of this Agreement during the term of this Agreement and for a period of one (1) year thereafter. Copies of such records shall be made available to the other Party upon written request.

6.4 Notices: All notices which are required to be given under this Agreement shall be in writing. Termination of a Partner Contract or an Insertion Order must be completed using the Platform. All other notices are to be provided via the Platform, as such address may be updated from time to time. Any such notice shall be deemed received upon being made on the Platform.

7. General

7.1 Force Majeure: "Force Majeure" means circumstances beyond the reasonable control of a Party, including but not limited to acts of God, war, terrorist action, fire, flood, governmental act Internet or other telecommunications failure. The Advertiser, Partner and/or impact.com disclaim liability for their failure or delay in performing any of their obligations hereunder if such failure or delay is caused by the occurrence of an event of Force Majeure. Notice of being affected by a Force Majeure event is to be made via the Platform. Advertiser, Partner and impact.com may terminate this Agreement with immediate effect upon notice to the others due to a Force Majeure event.

7.2 Entire Agreement: This Agreement and the Partner Contracts (including Insertion Orders) represent the entire understanding and constitutes the entire agreement in relation to the subject matter herein. This Agreement supersedes any previous agreement as to such subject matter.

7.3 Choice of Law & Venue: Unless provided for otherwise in a Partner Contract, this Agreement including its validity, interpretation and performance of it shall be governed and construed in accordance with the laws according to the Exhibit A Governing Law.

7.4 Electronic Signatures: The Parties acknowledge and agree that by clicking-through acceptance of this Agreement and the Partner Contracts (including Insertion Orders) , they are entering into a legally binding

contract. Further, each of them hereby waive any rights or requirements under any applicable statutes, regulations, rules, ordinances or other laws in any jurisdiction which require an original signature or delivery or retention of non-electronic records, or to payments or the granting of credits by other than electronic means.

7.5 Severability: If any provision in this Agreement is held by a court or administrative body of competent jurisdiction to be illegal, invalid or unenforceable under any enactment or rule of law then that provision shall be deemed not to form part of this Agreement and the enforceability and validity of the remainder of this Agreement shall not be affected. The Parties shall in good faith attempt to modify any invalidated provision to carry out the Parties' stated intentions.

7.5 Survival: All provisions that by their nature should reasonably be interpreted to survive the termination or expiration of this Agreement, shall survive such termination or expiration of this Agreement.

7.6 Independent Contractors: The Parties are independent contractors and this Agreement does not create any association, partnership, joint venture or agency relationship between them. Neither of them shall have the power to bind the others or to create a liability against the others, except as expressly provided for in this Agreement.

[EXHIBIT A FOLLOWS]

EXHIBIT A

Governing Law

The Partner Contract shall provide for the choice of law and venue (“Governing Law”) to govern the interpretation and/or any dispute concerning this Master Program Agreement. If the Partner Contract does not provide for the governing law and venue, the default governing law in the table below.

If impact.com is a Party to the Master Program Agreement as a “Partner”, impact.com is contracting through the entity in accordance with the Governing Law in the table below. Additionally, impact.com’s terms with the Sub-Partner are subject to the table below, including the Governing Law.

This Exhibit A may be updated periodically by posting a revised copy at the URL for the Master Program Agreement.

Advertiser’s – or- Sub-Publisher’s Place of Business* (as applicable)	impact.com Contracting Entity	impact.com Address for Notices	Governing Law (without reference to conflicts of law principles) & Exclusive Venue
North America (United States, Canada, Mexico), Latin America and ROW**	Impact Tech, Inc.	223. E. De La Guerra Street, Santa Barbara, CA 93101, USA	The laws of the State of California, with the exclusive jurisdiction of the state courts in Santa Barbara, California, USA or the federal courts in Los Angeles, California, USA.
Europe, Middle East & Africa – including but not limited to all the countries of the European Economic Area (EU and EFTA countries), the United Kingdom, Switzerland, Israel, and South Africa.	Impact Radius Limited	The Scalpel, 18th Floor 52 Lime Street, London EC3M 7AF, UK	English law, with the exclusive jurisdiction of the courts of England and Wales
Australia, New Zealand	Impact Tech Australia Pty Ltd.	Level 17, 383 Kent Street, Sydney NSW 2000, Australia	The laws of the Commonwealth of Australia and the State of New South Wales, with the exclusive jurisdiction of the courts in Sydney, New South Wales
Japan	Impact Tech Japan GK	WeWork the ARGYLE aoyama 5F, 2 Chome-14-4 Kita-Aoyama, Minato City, Tokyo 107-0061	The laws of Japan, with the exclusive jurisdiction of the courts in the Tokyo District Court, Tokyo, Japan
Southern and Southeast Asia – including but not limited to Singapore, Malaysia, Indonesia, Brunei Darussalam, Cambodia, India, Laos, Malaysia, Nepal, Pakistan, Philippines, Singapore, Thailand, and Vietnam.	Impact Tech Singapore PTE. LTD.	80 Robinson Road #02-00 Singapore 068898	The laws of the Republic of Singapore, with the exclusive jurisdiction of the courts of the Republic of Singapore

*This is the Advertiser’s or Sub-Publisher’s address listed on its impact.com Account.

**Rest of World (ROW) means all of those countries not included elsewhere on this table.

IMPACT.COM PARTNER SERVICES AGREEMENT

By applying to provide the PARTNER Services, you ("PARTNER") agree to the terms of this Agreement. Capitalized terms not otherwise defined herein have the meaning given to them in Section 9.10 below.

1. The Services

1.1. Services. Subject to the terms of this Agreement, PARTNER shall provide the PARTNER Services to IMPACT.COM, who in turn will resell the PARTNER Services to Advertisers under separate contracts with such Advertisers. In order to facilitate the provision of the PARTNER Services, IMPACT.COM will grant PARTNER certain access to and use of the IMPACT.COM Platform, as further described in this Agreement.

- a) Advertiser Programs. PARTNER must apply to each Program to promote an Advertiser, and, if qualified and accepted into the Program, provision of the PARTNER Services are subject to the Program Terms, and terms of the offer, statement of work or other written mutual agreement implemented through the IMPACT.COM Platform (referred to herein as an "Insertion Order"), as the Program Terms and/or Insertion Order may be updated from time to time by notice to PARTNER.
- b) Platform Access & Use. IMPACT.COM may (but is not obliged to) take commercially reasonable actions in relation to PARTNER's access to and use of the IMPACT.COM Platform including, but not limited to, rejecting Actions, refusing to host or removing any Advertiser Content, or restricting, suspending, or terminating PARTNER's or any User's access to or use of the Advertiser Content and/or the IMPACT.COM Platform. IMPACT.COM may also take actions, in its sole discretion, that have a direct or indirect impact on PARTNER's use of the IMPACT.COM Platform for the protection of or in the interests of the integrity and/or performance of the IMPACT.COM Platform. IMPACT.COM's obligations under this Agreement may be performed by IMPACT.COM or one more IMPACT.COM Affiliates.

1.2. Requirements.

- a) General. PARTNER shall not: (a) share, rent or use the IMPACT.COM Platform for the benefit of any person or entity other than PARTNER; (b) modify, copy, reverse compile, disassemble, reverse engineer, decompile, prepare derivative works based on, the IMPACT.COM Platform, or attempt in any manner to derive its source code; (c) hack, abuse, adversely interfere with the IMPACT.COM Platform, or infect the IMPACT.COM Platform with viruses, worms or other malicious or destructive code; and (d) authorize Users that are not employees, directors or officers of PARTNER without IMPACT.COM's prior written permission (at IMPACT.COM's sole discretion). PARTNER must at all times utilize the IMPACT.COM Platform for its intended purposes, and may not use scraping or other data mining methods to obtain information and/or data from or through the IMPACT.COM Platform.
- b) Approved Methods. PARTNER must provide the PARTNER Services using only those methods approved or prescribed by IMPACT.COM and any relevant Advertiser, and in any case not through: (i) provision of leads obtained other than through intended Visitor action (e.g. through scraping or other data mining, or through use of compilations of personal data); (ii) use of fake redirects, automated software, or other mechanisms to generate actions; and/or (iii) actions using any device, robot, Iframes or hidden frames; or (iv) adware, spyware or malware. If PARTNER wants to use applications to deliver Advertiser Content in providing the PARTNER Services, PARTNER must disclose to the Visitor a clear and concise description of the core functionality of the applications and that the application is a source of revenue for the PARTNER. Further, PARTNER must meet or exceed then-current industry standards for applications (such as getting Visitor's consent to download/install, etc.). At all times PARTNER's advertising and promotion of Advertisers and/or their products and services must be in compliance with Applicable Laws.
- c) Compliance/Quality. PARTNER agrees that when using the IMPACT.COM Platform and/or providing the PARTNER Services, it will only publish, transmit, upload and/or distribute information, data, content and material about IMPACT.COM, PARTNER, Advertisers and Advertiser Content that is lawful, accurate, of commercially reasonable quality, ethical (under the American Marketing Association's Code of Conduct & Statement of Ethics) and does not bring IMPACT.COM and/or the Advertisers into disrepute or create reputational harm to them. PARTNER will comply with any and all policies of IMPACT.COM and additional terms and conditions from time to time notified to PARTNER. Further, PARTNER may not engage in conduct that interferes with another partner's referral of traffic to an Advertiser, including but not limited to, through cookie stuffing or browser extension/toolbars. If, in providing the PARTNER Services, PARTNER intends to use incentives to promote an Advertiser and procure clicks, leads or sales, PARTNER is required to notify IMPACT.COM and the Advertiser, not use incentives if prohibited by IMPACT.COM or the Program Terms or the Insertion Order, and if permitted to use incentives, use incentives in a bona fide way. PARTNER and its website(s) and promotional means must comply with all Applicable Laws and industry standards, be of high quality and comply with IMPACT.COM's PARTNER Code of Conduct (as notified to PARTNER and/or updated from time to time). PARTNER must at all times behave professionally and not harass, intimidate, bully, or abuse IMPACT.COM or Advertiser personnel, or otherwise behave in a manner that is not conducive to a good working relationship.

1.3. Responsibilities. PARTNER is solely liable for its and its Users' acts, errors and/or omissions, and breaches of this Agreement. Each User must utilize its own unique username and password that are not shared with anyone. PARTNER must remove a User's permission and access rights when no longer authorized to access and use PARTNER's Account. PARTNER is to notify IMPACT.COM in writing immediately if PARTNER becomes aware of any unauthorized access or use of the IMPACT.COM Platform. PARTNER is obligated to keep its contact, banking, payment and tax information up to date.

1.4. Consequences. Breach of Section 1.2 (*Requirements*) and/or Section 1.3 (*Responsibilities*) may result in suspension of access to and use of the Partner Account or termination of this Agreement pursuant to Section 4.

2. Ownership & Reservation of Right

2.1 IMPACT.COM Intellectual Property. IMPACT.COM reserves all rights, title and interest in and to, as well as all Intellectual Property Rights in, the IMPACT.COM Platform, the Documentation and IMPACT.COM trademarks and trade names, and Partner has no interest in or rights therein. All derivatives of, improvements to, or modification of the IMPACT.COM Platform are owned exclusively by IMPACT.COM. PARTNER may not encumber, assert a claim to or ownership of, or adverse interest in, the IMPACT.COM Platform, the Documentation or any IMPACT.COM Intellectual Property or any goodwill associated therewith.

2.2 Reports. During the term of this Agreement, PARTNER will have access to reporting functionality on the IMPACT.COM Platform including details regarding PARTNER's performance of the PARTNER Services. PARTNER may use reports generated through the IMPACT.COM Platform for its own internal business purposes and to provide legitimate and lawful services, except that the reports may not be sold, traded, bartered, or given away at no cost.

2.3 Advertiser Content. Advertiser Content is provided through the IMPACT.COM Platform solely for the provision of PARTNER Services and is provided on an "As Is" basis. If the Program Terms or the Insertion Order contain requirements or usage terms for Advertiser Content including Advertiser Intellectual Property, PARTNER is obliged to comply with such requirements in addition to any terms in the Master Program Agreement (as notified to PARTNER and as may be updated from time to time). PARTNER may not encumber, assert a claim to or ownership of, or adverse interest in, the Advertiser Content or Advertiser Intellectual property or any goodwill associated therewith.

3. Payment of Partner Compensation

3.1 Payment. For Partner Compensation that is Earned, Partner will be eligible to request payment when (a) the minimum balance for PARTNER's elected payout method (&/or payout amount) is reached, and (b) compliance clearance has been completed (such as confirmation of compliance with the relevant Program Terms and this Agreement, receipt of complete and accurate tax information &/or forms, etc.). IMPACT.COM's liability for Earned Partner Compensation is subject to "sequential liability" of the Advertiser. "Sequential liability" means that payment of the Partner Compensation by IMPACT.COM to Partner is subject to receipt of payment by IMPACT.COM from the Advertiser. IMPACT.COM may reverse or decline payment of the Partner Compensation where the Advertiser has not paid for the resold Partner Services. IMPACT.COM may offset any amounts owed by PARTNER to IMPACT (including claw back of amounts for non-compliance issues, incorrect or double payment, etc.). PARTNER is responsible for all bank charges associated with payment to PARTNER of PARTNER Compensation. Payment is to be made in the currency specified in the Program Terms, and payment made in any other currency requested by PARTNER is subject to foreign currency processing fees. Amounts owed by PARTNER to IMPACT.COM that are not offset by Earned Partner Compensation will be invoiced by IMPACT.COM and due net 30 days from invoice date. PARTNER's payment obligations survive the termination of this Agreement. Amounts Earned by PARTNER shall be forfeited under any of the following circumstances: (a) if PARTNER does not accurately complete any required tax forms or banking or payment instructions, (b) does not have any Events recorded on its Account for six (6) months, (c) if IMPACT.COM is unable to verify PARTNER's identity or banking or payment instructions, or (d) if IMPACT.COM is ineligible to utilize the Services and PARTNER's Account is suspended or closed. If forfeiture is prohibited by Applicable Laws, IMPACT.COM will deduct a fee equivalent to Twenty-five British Pounds (GBP£25, or PARTNER's payout currency equivalent) per month ("Account Management Fees") unless and until PARTNER comes into compliance or the Account balance is zero, at which time PARTNER's Account will be closed.

3.2 Taxes. All sums payable under this Agreement (including, with respect to Partner Compensation and IMPACT.COM fees (if any)), shall be exclusive of VAT, sales taxes or other comparable Taxes which, if applicable, shall be paid in addition. PARTNER is solely responsible for any taxes, levies, duties or similar governmental assessments of any nature that are assessable by any jurisdiction whatsoever (collectively, "Taxes"). If IMPACT.COM has a legal obligation to pay, withhold or collect Taxes for which PARTNER is responsible under this Agreement and/or the Partner Contracts, IMPACT.COM is entitled to deduct the appropriate amount from PARTNER's Account (i.e., from Partner Compensation credited to PARTNER's Account), unless PARTNER provides IMPACT.COM with a valid tax exemption certificate authorized by the appropriate taxing authority. For clarity, IMPACT.COM is solely responsible for taxes assessable against IMPACT.COM based on IMPACT.COM's income, property and employees. All late charges, penalties or interest due to PARTNER's late payment of Taxes invoiced to PARTNER are solely the responsibility of PARTNER.

3.2.1 Self-billed Invoices. For the duration of the Agreement, PARTNER agrees to IMPACT.COM invoicing PARTNER for Partner Compensation payable under a self-billing arrangement (and will accept invoices raised by IMPACT.COM on its behalf) and further agrees that:

- a. it is registered for VAT and will, within five (5) days of the Effective Date of this Agreement, provide IMPACT.COM (and update its Account) with its VAT registration number;
- b. for so long as the self-billing arrangement is in place PARTNER agrees that it will not raise VAT invoices for any Partner Compensation generated pursuant to this Agreement;
- c. it will immediately notify IMPACT.COM if the PARTNER transfers any part of its business as a going concern; and
- d. it will immediately notify IMPACT.COM, and will update its Account accordingly, if it: (i) stops being registered for VAT, sales tax or other comparable taxes; or (ii) changes its VAT number or other tax identification number previously provided (regardless of reason).

4 Term & Termination

4.1 General. This Agreement shall commence on the Effective Date and shall remain in force unless modified, superseded or terminated. Either Party may terminate this Agreement upon written notice. If IMPACT.COM terminates this Agreement or suspends PARTNER's Account, PARTNER will have ten (10) days (a "Notice Period") to cure its breach or non-compliance with this Agreement, unless the breach or non-compliance is incurable, or repeated, in which case no Notice Period is required. Termination is effective at the end of the Notice Period if the non-compliance is not cured to IMPACT.COM's satisfaction, or immediately if this Agreement is terminated due an ongoing "Force Majeure" (as defined below) or if terminated due to PARTNER's incurable or repeated breach. If IMPACT.COM Platform access or usage is delayed or no longer available due to cause(s) beyond IMPACT.COM's control (a "Force Majeure"), IMPACT.COM will provide written notice by way of posting on an IMPACT.COM website or via email. IMPACT.COM may terminate access to or usage of the IMPACT.COM Platform (or any part thereof) for any or no reason upon written notice.

4.2 Effect of Termination. Upon the effective date of termination, (a) IMPACT.COM shall cease providing access to and PARTNER shall cease all use of the IMPACT.COM Platform, (b) PARTNER shall deliver up to IMPACT.COM any work-in-progress generated pursuant to this Agreement; and (c) PARTNER shall cease use of all Advertiser Content. Pursuant to Section 3.1, IMPACT.COM may seek return of Partner Compensation previously paid out, even after the effective date of termination. Post-termination obligations in Section 6.3 shall apply to each Party's Confidential Information. The Data Protection Agreement is subject to its own termination provisions.

5 Representations and Warranties

5.1 Continuing Warranties. PARTNER represents and warrants that the statements contained in this Section 5 are true and correct as of the Effective Date and shall continue to be true and correct through the date of termination of this Agreement. PARTNER represents and warrants that: (i) it has full power and authority to execute, deliver and perform its obligations under this Agreement, and will do so without conflict with any obligation, contract, lease, license, third party's rights, applicable law or agreement to which PARTNER is a party or by which PARTNER is bound; (ii) in performance of this Agreement, its provision of the PARTNER Services and its use of the IMPACT.COM Platform, PARTNER will comply with all Applicable Laws; (iii) it will use the Advertiser Content and provide the PARTNER Services pursuant to the Advertiser's Program Terms and the terms of this Agreement (including the Data Protection Agreement); and (iv) it will not use Advertiser Content or provide the PARTNER Services in a way that infringes or misappropriates any third party's Intellectual Property Rights or violates Applicable Laws or the Advertiser's Program Terms.

5.2 Disclaimers. IMPACT.COM shall not be liable for: (a) PARTNER's use of the IMPACT.COM Platform in breach of this Agreement (including but not limited to Section 1 and/or the Data Protection Agreement); (b) PARTNER's and/or its Users' (and each of their subcontractors/contractors, subnetwork members, or other third parties engaged by PARTNER) acts, errors and omissions, or breach of this Agreement and/or an Advertiser's Program Terms; (c) defects, problems, or failures of products, services and/or software not provided by IMPACT.COM; (d) Advertisers acts, errors, omissions, the contents of the Advertisers' Program Terms or their breach of their Program Terms, Earned but unpaid PARTNER Compensation due to Advertiser's sequential liability, and/or for Advertiser Content (including but not limited to any errors or omissions therein, or any damages or Claims due to PARTNER and its Users use of, access to, or denial of access to the Advertiser Content); and/or (d) defects, problems or failure of the Internet. For the avoidance of doubt, this Section 5.2 shall survive the termination of this Agreement.

6 Confidentiality & Personal Data

6.1 Scope. Each IMPACT.COM and PARTNER as a "Receiving Party" (a party receiving Confidential Information of the other Party) shall prevent disclosure of the Confidential Information of the other Party (a "Disclosing Party") to anyone (including but not limited to its own employees, sub-contractors, Affiliates and agents) other than those with a need to know such Confidential Information for the purposes of this Agreement, and who are contractually obligated or obligated by law to keep such Confidential Information confidential. The Receiving Party may use the Disclosing Party's Confidential Information only for the purposes permitted under this Agreement. Disclosure to third parties may be made only to those that the Disclosing Party has authorized such disclosure, and Confidential Information shall include information provided by Advertisers and Affiliates that is authorized for disclosure to PARTNER or by PARTNER to IMPACT.COM. PARTNER authorizes IMPACT.COM to provide PARTNER Confidential Information that is relevant to the PARTNER Services, as well as PARTNER's and its Users' contact information, to Advertisers and IMPACT.COM's Affiliates, agents and subcontractors for the performance of this Agreement and IMPACT.COM's agreements with the Advertisers. The Receiving Party must use reasonable efforts to maintain the confidentiality of the Confidential Information, including steps to protect it as the Receiving Party takes to protect its own similarly valuable confidential and proprietary information, and in no event less than a reasonable standard of care. All Confidential Information, including, without limitation, all copies of Confidential Information exchanged under the Agreement, is and will remain the property of the Disclosing Party, its licensors, its Affiliates and/or the Advertisers, as applicable. Except as disclaimed and/or limited herein, the Receiving Party remains responsible for the acts, errors or omission by third parties to whom the Receiving Party discloses the Disclosing Party's Confidential Information.

6.2 Compliance with Law. The Receiving Party may disclose Confidential Information that it is obligated to produce by law or other lawful requirement of a governmental agency or a subpoena for the limited purpose required by a court or government agency, so long as the Receiving Party provides the Disclosing Party with written notice in advance of any such disclosure (unless prohibited by Applicable Laws), and complies with any applicable protective order or equivalent designed to protect the confidentiality of the Confidential Information.

6.3 Continuing Obligations. Within ninety (90) days of termination or expiration of this Agreement, the Receiving Party shall destroy the Disclosing Party's Confidential Information, unless return of Confidential Information is requested in writing by the Disclosing Party before

the ninety (90) days ends. Notwithstanding foregoing, the Receiving Party shall not be obligated to purge any Disclosing Party Confidential Information that is (a) needed to perform its obligations pursuant to this Agreement, (b) being retained pursuant to the Receiving Party's normal, legally compliant document retention practices for Confidential Information that is in not-readily accessible or archived format, or (c) retained pursuant to a litigation hold, subject to the continuing obligations of Section 6.1. IMPACT.COM may retain data Processed by it as long as this Agreement remains in effect, or for as long as necessary to comply with its obligations to Advertisers, and/or as permitted or required by Applicable Laws. The obligations of confidentiality, non-use and non-disclosure of Confidential Information shall survive the expiration or termination of this Agreement.

6.4 Personal Data. This Agreement is subject to the then-current Data Protection Agreement located at https://impact.com/legal/Data_Protection_Agreement.pdf, which is incorporated herein by this reference and each Party acknowledges acceptance of its terms. When use of the IMPACT.COM Platform requires IMPACT.COM to Process Personal Data of Users and Visitors, such Processing will be done in accordance with the Data Protection Agreement.

7 Indemnity

7.1 General. PARTNER agrees to Indemnify IMPACT.COM, IMPACT.COM Affiliates and each of their officers, directors, employees, agents, subcontractors/third party service providers, and the successors and assignees of each of the foregoing (each an "Indemnified Party"), from and against all Claims (including Claims brought by Advertisers) arising as a result of: (a) PARTNER's violation of or failure to comply with any Applicable Laws; (b) PARTNER's breach of Section 6 (Confidentiality); and (c) PARTNER's breach of (i) any of its representations and warranties under this Agreement, and/or (ii) any of PARTNER's obligations in this Agreement.

7.2 Requirements. PARTNER's obligation to Indemnify pursuant to this Section 7 is subject to (a) the Indemnified Party providing PARTNER with written notice of the Claim, (b) the Indemnified Party giving PARTNER the sole right to defend, compromise, and settle any such Claim (except where settlement would impose any cost or limitation on the Indemnified Party, or would admit fault by the Indemnified Party without the Indemnified Party's consent), and (c) the Indemnified Party providing reasonable cooperation and assistance to PARTNER, at PARTNER's sole expense. Counsel provided by PARTNER for the Indemnified Party's defense must be acceptable to the Indemnified Party, in its reasonable discretion. The Indemnified Party shall be entitled to participate in its own defense at the Indemnified Party's own expense. However, where PARTNER does not engage counsel reasonably acceptable to the Indemnified Party in a timely manner to assume the defense of Indemnified Party for such Claim, the Indemnified Party may retain its own counsel which such fees, costs and disbursements of such retained counsel shall be at the expense of PARTNER, in addition to any compromise, settlement and/or judgement against the Indemnified Party.

8 Limitations of Liability

8.1 Liability. Subject to Section 8.2 (Liabilities Which Cannot Legally Be Limited), Section 8.3 (No Limitation re Partner's Payment Obligations) and Section 8.4 (No Limitation re IMPACT.COM'S Intellectual Property Rights):

- a) EXCLUSIONS. AS BETWEEN IMPACT.COM AND PARTNER, IMPACT.COM SHALL NOT UNDER ANY CIRCUMSTANCES BE LIABLE TO PARTNER OR ITS USERS, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), BREACH OF STATUTORY DUTY, OR OTHERWISE FOR:
 - i) ANY LOSS OF PROFIT, SALES, REVENUE OR BUSINESS;
 - ii) LOSS OF ANTICIPATED SAVINGS;
 - iii) LOSS OF OR DAMAGE TO GOODWILL;
 - iv) LOSS OF AGREEMENTS OR CONTRACTS;
- b) IN EACH OF THE FOREGOING WHETHER DIRECT OR INDIRECT:
 - i) ANY INDIRECT OR CONSEQUENTIAL LOSS OR DAMAGE OF ANY KIND HOWSOEVER ARISING AND WHETHER CAUSED BY TORT (INCLUDING NEGLIGENCE), BREACH OF CONTRACT OR OTHERWISE, WHETHER OR NOT SUCH LOSS OR DAMAGE IS FORESEEABLE, FORESEEN OR KNOWN;
 - ii) ANY ACTS OR OMISSIONS OF ANY OTHER THIRD PARTIES (OTHER THAN IMPACT'S AFFILIATES THAT DO NOT HAVE A DIRECT CONTRACTUAL RELATIONSHIP WITH COMPANY, AND IMPACT'S SUB-CONTRACTORS); OR
 - iii) ANY DEFECTS, PROBLEMS, DAMAGES OR LOSSES CAUSED BY OR RESULTING FROM ANY FORCE MAJEURE, FAILURES OF THE INTERNET OR ANY PRODUCTS, SERVICES OR SOFTWARE NOT SUPPLIED BY IMPACT.
- c) LIMITS. IMPACT.COM'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT (INCLUDING UNDER THE DPA, STANDARD CONTRACTUAL CLAUSES (SCCS) AND/OR "UK SCCS", AS DEFINED IN THE DPA), WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), BREACH OF STATUTORY DUTY, OR UNDER ANY OTHER THEORY OF LIABILITY, SHALL IN ANY CIRCUMSTANCES EXCEED THE LESSER OF THE AMOUNT OF PARTNER COMPENSATION PAID OUT TO PARTNER IN THE IMMEDIATELY PRECEDING TWELVE (12) MONTHS OR TWENTY-FIVE THOUSAND BRITISH POUNDS (GBP£25,000).

8.2 LIABILITIES WHICH CANNOT LEGALLY BE LIMITED. Nothing in the Agreement shall limit or exclude the liability of either Party for:

- a) DEATH OR PERSONAL INJURY CAUSED BY ITS NEGLIGENCE, OR THE NEGLIGENCE OF ITS PERSONNEL (AS APPLICABLE);
- b) FRAUD OR FRAUDULENT MISREPRESENTATION, WILFUL DEFAULT OR DELIBERATE BREACH OF THE AGREEMENT; AND
- c) ANY MATTER IN RESPECT OF WHICH IT WOULD BE UNLAWFUL TO EXCLUDE OR RESTRICT LIABILITY.

8.3 NO LIMITATION RE PARTNER'S PAYMENT OBLIGATIONS. NOTHING IN THIS SECTION 8 SHALL LIMIT PARTNER'S OBLIGATIONS TO PAY

8.4 NO LIMITATION RE IMPACT.COM'S INTELLECTUAL PROPERTY RIGHTS. NOTHING IN THIS AGREEMENT SHALL LIMIT PARTNER'S LIABILITY IN THE EVENT OF PARTNER'S MISAPPROPRIATION OR BREACH OF ITS AUTHORISATION TO USE THE IMPACT.COM PLATFORM AND/OR DOCUMENTATION, AND ANY IMPACT.COM INTELLECTUAL PROPERTY RIGHTS AND/OR GOODWILL THEREIN.

9 Miscellaneous

9.1 No Agency or Partnership: Nothing herein is intended to, or shall be deemed or construed to, create an employer/employee, joint venture, agency or partnership relationship between the Parties. Neither Party shall have any authority to incur any obligations on behalf of the other Party or to make any promise, representation or contract of any nature on behalf of the other Party.

9.2 Governing Law: This Agreement and any dispute, controversy, proceeding or claim of whatsoever nature arising out of or in any way relating to it or its formation, including any non-contractual claims or obligations arising out of or in connection with it, shall be governed by and construed in accordance with the laws according to the Exhibit A Governing Law. A Party that primarily prevails in any proceedings brought pursuant to the preceding sentence shall be entitled to its attorneys' fees and costs to bring such proceedings.

9.3 Entire Agreement & Amendment: This Agreement (including all additional terms referenced herein that are incorporated into the Agreement) represent the entire understanding and agreement between the Parties that relate to the subject matter hereof. This Agreement applies only to PARTNER's participation in Programs that specifically incorporate this Agreement, and if so incorporated, this Agreement supersedes any and all prior or contemporaneous contracts, agreements, understandings or representations, whether written or oral, solely with respect to such Programs. The Parties expressly agree that any confidentiality and non-disclosure agreement(s) executed between the Parties prior to the date of this Agreement (if any) are terminated and such terms are superseded by the terms of this Agreement. The Parties may agree to additional terms and conditions that are applicable to specific PARTNER Services and/or use of specific functionalities of the IMPACT.COM Platform, and each such additional terms and conditions become a part of this Agreement. Each of the Parties acknowledges that there are no other promises, representations, or warranties whatsoever, whether by a Party, any of its Affiliates, employee, contractor, officer director, agent or attorney of such Party or such Party's Affiliate(s), and acknowledges that it has not executed or authorized the execution of this Agreement in reliance upon any such promise, representation or warranty, that is not expressly contained in this Agreement. IMPACT.COM may amend this Agreement (or any part thereof) upon written notice to PARTNER which may be through PARTNER's Account or to the main email address listed on PARTNER's Account. Except as specifically provided for in the preceding sentence or otherwise in this Agreement, no alteration, amendment, waiver, cancellation or any other change in any term or condition of this Agreement shall be valid or binding on either Party except by written mutual agreement.

9.4 No Third-Party Beneficiaries: This Agreement is made solely for the benefit of the Parties to this Agreement, IMPACT.COM's Affiliates, and each of their respective permitted successors and assigns. Other than an Indemnified Party with respect to an Indemnity pursuant to Section 7, no other person or entity shall have or acquire any right, power or privilege by virtue of this Agreement, or have any benefit or interest, arising out of this Agreement. Any obligation of IMPACT.COM may be performed by an IMPACT.COM Affiliate, and the terms of this Agreement may be enforced by an IMPACT.COM Affiliate.

9.5 Assignment: PARTNER may not assign this Agreement (in whole or in part), delegate its duties to any third party or allow Affiliates of subnetwork members (third parties) to utilize the IMPACT.COM Platform (in whole or in part) without the prior written consent of IMPACT.COM, including but not limited to transfers to any successor in interest (such as in a merger, consolidation or sale of all or substantially all of the Party's stock or assets). IMPACT.COM may freely assign and transfer this Agreement and delegate its duties. This Agreement shall be binding upon, and shall inure to the benefit of, the Parties and their respective successors and permitted assigns/transferees.

9.6 Notice: No notice required or permitted hereunder shall be valid unless given in writing and shall be deemed to have been validly given only if delivered as follows: (a) by IMPACT.COM to PARTNER – through or on the IMPACT.COM Platform, or at the main email address listed on PARTNER's Account, or by first class mail (effective on the second day after depositing the mail in the post) or by commercial courier; and (b) by PARTNER to the IMPACT.COM entity and address listed in Exhibit A - by registered or certified mail, postage prepaid, return receipt requested, or commercial courier, with a copy to Impact Tech, Inc., 223 East De La Guerra Street, Attention: Legal Dept, Santa Barbara, CA 93101, USA. Notice is effective upon receipt (or refusal to accept receipt), upon delivery in the case of email notice, and upon availability of such notice through or on the IMPACT.COM Platform.

9.7 Survival/Severability: Except as otherwise provided herein, warranties and obligations contained herein shall survive termination of this Agreement, regardless of the reason for such termination, and shall continue in full force and effect. The provisions of this Agreement are severable, and if any clause or provisions hereof shall be held invalid or unenforceable in whole or in part, then such invalidity or unenforceability shall affect only such clause or provision, or part thereof, and shall not in any manner affect such clause or provision, or any other clause or provision in this Agreement. Any such clause or provision held invalid or unenforceable, in whole or in part, to the extent permitted by law, shall be restricted in applicability or reformed to the minimum extent required for such clause or provision to be enforceable.

9.8 Remedies/Waiver: Unless explicitly stated otherwise, each Party's rights and remedies whether in contract, law or equity, are cumulative. Any waiver by either Party of any provision or condition of this Agreement shall not be construed or deemed to be a waiver

of any other provision or condition of this Agreement, nor a waiver of a subsequent breach of the same provision or condition, unless such waiver is expressed in writing and signed by the Parties. Delay in the enforcement of any remedy in the event of a breach of any term or condition, or in the exercise by either Party of any right, shall not be construed as a waiver of such remedy or right, unless the Agreement provides for a specific period of time for notice of breach or exercise of a right.

9.9 Electronic Signatures/Interpretation. The Parties acknowledge that they have had an opportunity to review this Agreement, seek counsel regarding interpretation of its terms, and an opportunity to request to negotiate amendments to these terms. English is the official language of the Agreement and Documentation. Translations of the Agreement and/or Documentation into other languages are provided as a courtesy only. The English language versions shall prevail in any conflict or inconsistency between any term in the English language version of the Agreement and/or Documentation and any version translated in another language. In the event of an ambiguity or question of intent or interpretation arises, this Agreement shall be construed as if drafted jointly by the Parties, and no presumption or burden of proof shall arise favoring or disfavoring any Party by virtue of the authorship of any of the provisions of this Agreement. PARTNER HEREBY AGREES TO THE USE OF ELECTRONIC SIGNATURES, CONTRACTS, ORDERS AND OTHER RECORDS AND TO ELECTRONIC DELIVERY OF NOTICES, POLICIES AND RECORDS OF TRANSACTIONS INITIATED OR COMPLETED THROUGH THE PRODUCTS. Further, PARTNER hereby waives any rights or requirements under any applicable statutes, regulations, rules, ordinances or other laws in any jurisdiction which require an original signature or delivery or retention of non-electronic records, or to payments or the granting of credits by other than electronic means.

9.10 Definitions. Capitalized terms used, but not otherwise defined herein, have the following meanings:

- (a) **"Account"** means the password protected area within IMPACT.COM's platform that contains PARTNER's contact information (including for notifications, that is required to be kept up-to-date by PARTNER), and that contains a ledger account with balance information regarding PARTNER Compensation amounts credited to PARTNER and amounts paid out to PARTNER.
- (b) **["Account Management Fees"]** means IMPACT.COM's then-current charge to maintain an inactive Account, or where PARTNER has not kept its Account up-to-date. *TBD if this is a fee that is deducted monthly until the balance is zero or straight forfeiture.*]
- (c) **"Actions"** or **"Events"** means each occurrence, such as a click, lead, install, sale, impression or other action that is tracked by or reported to and recorded by IMPACT.COM and/or for which PARTNER is compensated in relation to the provision of the PARTNER Services.
- (d) **"Advertiser"** means each entity with whom the PARTNER promotes in providing the PARTNER Services.
- (e) **"Advertiser Content"** means an Advertiser's advertising materials in any form or format, such as visual, written or audible communications, files, documents, videos, recordings, and that is made available to PARTNER through the IMPACT.COM Platform or in the course of providing the PARTNER Services.
- (f) **"Agreement"** means this IMPACT.COM PARTNER Services Agreement, the Master Program Agreement, the PARTNER Code of Conduct, the Marketplace Participation Terms, and each linked to terms and conditions or agreement referred to herein, which are incorporated herein by this reference.
- (g) **"Affiliate"** means any entity which directly or indirectly controls, is controlled by, or is under common control with IMPACT.COM. Control in this context (including its correlative meanings) means direct or indirect possession of the power to direct or cause the direction of the management and policies of such entity, whether through ownership or control of more than 50% of the voting interests of the subject entity, by contract or otherwise.
- (h) **"Applicable Laws"** means any and all laws, ordinances, constitutions, regulations, statutes, treaties, rules, codes, licenses, principles of common law, requirements and orders adopted, enacted, implemented, promulgated, issued, entered or deemed applicable by or under the authority of any governmental body having jurisdiction over a Party to this Agreement or the subject matter of this Agreement.
- (i) **"Claims"** means all third party alleged or actual actions, causes of action (of any nature or type), personal injury, claims, damages, demands, disbursements, judgments, legal proceedings, liability, losses, property damage, settlement payments, costs or expenses (including attorneys' fees and costs).
- (j) **"Confidential Information"** means all information or material, whether past, present or future, and whether in oral, written, digital, electronic or other form, that is of or concerning a "Disclosing Party" (Party providing the information or whom the information is about) which is disclosed to or learned by a "Receiving Party" (Party receiving or learning the information), that relates in any way to, or is about, the Disclosing Party, its financial data, business plans, pricing, methods, methodologies, processes, lists, intellectual property rights, customer information, products, services, information technology, software user interfaces, programs, research, development and/or marketing strategies, whether or not such information and materials are marked or identified as "confidential"; provided that "Confidential Information" shall not include information which is: (i) approved for release or released by the Disclosing Party for public disclosure; (ii) becomes known publicly through no fault of the Receiving Party; (iii) is lawfully obtained from a third-party free of restrictions on disclosure; (iv) is already known to the Receiving Party; or (v) is developed by or for the Receiving Party independent of the Disclosing Party's Confidential Information; or (vi) is released without restriction by the Disclosing Party.
- (k) **"Documentation"** means all instructions and specifications relating to the IMPACT.COM Platform or the PARTNER Services that are distributed or made available by IMPACT.COM.
- (l) **"Earned"** means that as of the date that the Partner Compensation is recorded as having been earned, IMPACT.COM is unaware of any legitimate reason to reverse or otherwise decline payment of the Partner Compensation, and the Advertiser has paid IMPACT.COM for such Partner Compensation (e.g., IMPACT.COM has sequential liability).
- (m) **"Effective Date"** means the date on which Partner (or its authorized representative) signs up to become a Partner and clicks the checkbox agreeing to the terms of the Agreement.
- (n) **"IMPACT.COM"** means the impact.com contracting entity as listed in Exhibit A.
- (o) **"IMPACT.COM Platform"** means the products, services, platform, documents, software, works of authorship, inventions,

technology, hardware, processes, algorithms, user interfaces, know-how, trade secrets, techniques, designs, and other tangible or intangible technical material or information of IMPACT.COM including statistical data and metrics concerning any of the foregoing, and the use of any of the foregoing by PARTNER pursuant to this Agreement.

(p) **"Intellectual Property"** means any product of the human intellect that the law protects from unauthorized use by others.

(q) **"Intellectual Property Rights"** means any and all right, title and interest in Intellectual Property existing as of the Effective Date or at any time thereafter, worldwide, including all patent, patent application, copyright, trademark, trade name, service mark, service name, trade secret or other proprietary right arising or enforceable under any applicable law, rule, or regulation.

(r) **"PARTNER"** means the individual or entity that enters into this Agreement with IMPACT.COM and does not include (and these terms are void and the IMPACT.COM Platform may not be used by) individuals under the age of 18 years old (or Applicable Law age of majority) as well as competitors of, or those using the IMPACT.COM Platform to compete with, IMPACT.COM.

(s) **"PARTNER Compensation"** means amounts credited to PARTNER's Account for providing the PARTNER Services and that is subject to PARTNER's compliance with the relevant Advertiser's Program Terms and this Agreement, and is net of any fees owed by PARTNER to IMPACT.COM for subscriptions to IMPACT.COM fee-based services.

(t) **"PARTNER Services"** means promotion by the PARTNER of an Advertiser or Advertiser Content (including where mediated through the use of the IMPACT.COM Platform, and where such services are resold by IMPACT.COM) and/or any services that are ancillary or supplemental thereto, in each case subject to and in accordance with this Agreement and the Advertiser's Program Terms.

(u) **"Personal Data"** has the meaning given to it in Applicable Laws, and applies to data that is Processed by IMPACT.COM for the provision of the PARTNER Services or use of the IMPACT.COM Platform.

(v) **"Process(ing)"** means any operation or set of operations that is performed by IMPACT.COM and/or through the IMPACT.COM Platform, whether by automatic means, such as collection, recording, organization, storage, adaptation or alteration, retrieval, consultation, use, performance, disclosure by transmission, dissemination or making available (including making available to view), transfer, alignment or combination, blocking, erasure or destruction.

(w) **"Program"** means an offering through the IMPACT.COM Platform to promote an Advertiser through the provision of PARTNER Services.

(x) **"Program Terms"** means the terms that PARTNER is required to comply with in order to promote an Advertiser, including the Insertion Order, in the course of providing PARTNER Services.

(y) **"Users"** means individuals who PARTNER adds as or authorizes IMPACT.COM to add to PARTNER's Account, and that set up user unique identifications/log-ins and passwords. A "User" may not be a competitor of or use the IMPACT.COM Platform and/or Documentation to compete with IMPACT.COM. PARTNER may only authorize its officers, directors and/or employees as "Users" and must obtain IMPACT.COM's prior written consent to add third parties as "Users".

(z) **"Visitor"** means an individual that is referred by the PARTNER to the Advertiser and (if required by the Program Terms) interacts with Advertiser Content, such as clicking on a text link or banner, filling out the Advertiser's lead form, making a purchase from the Advertiser, etc.

EACH PERSON EXECUTING THIS AGREEMENT ON BEHALF OF AN ENTITY REPRESENTS AND WARRANTS THAT HE OR SHE HAS COMPLETE AND FULL AUTHORITY AND CAPACITY TO ACT ON BEHALF OF THAT ENTITY. SUCH PERSON AGREES TO INDEMNIFY, DEFEND, AND HOLD IMPACT.COM AND ITS AFFILIATES HARMLESS IN THE EVENT THAT THE PERSON WAS NOT AUTHORIZED.

[Exhibit A attached]

Confidential Information of IMPACT.COM updated May 30, 2025

Exhibit A
Governing Law

This Partner Services Agreement is between PARTNER and the IMPACT.COM Contracting Entity listed in the table below, and subject to the Governing Law as well as the IMPACT.COM address for notices.

This Exhibit A may be updated periodically by posting a revised copy at the URL for the Partner Services Agreement.

PARTNER's Place of Business* (as applicable)	IMPACT.COM Contracting Entity	IMPACT.COM Address for Notices	Governing Law (without reference to conflicts of law principles) & Exclusive Venue
Europe, Middle East & Africa – including but not limited to all the countries of the European Economic Area (EU and EFTA countries), the United Kingdom, Switzerland, Israel, and South Africa.	Impact Radius Limited	The Scalpel, 18th Floor 52 Lime Street, London EC3M 7AF, UK	English law, with the exclusive jurisdiction of the courts of England and Wales
Australia, New Zealand	Impact Tech Australia Pty Ltd.	Level 17, 383 Kent Street, Sydney NSW 2000, Australia	The laws of the Commonwealth of Australia and the State of New South Wales, with the exclusive jurisdiction of the courts in Sydney, New South Wales
Southern and Southeast Asia – including but not limited to Singapore, Malaysia, Indonesia, Brunei Darussalam, Cambodia, India, Laos, Malaysia, Nepal, Pakistan, Philippines, Singapore, Thailand, and Vietnam.	Impact Tech Singapore PTE. LTD.	9 Raffles Place, #26-01 Republic Plaza Singapore 048619	The laws of the Republic of Singapore, with the exclusive jurisdiction of the courts of the Republic of Singapore

*This is the PARTNER's address listed on its impact.com Account.